

CHAPTER 13.

- An Act to provide for the transfer to the Commissioners of Works of certain property of the London Institution for the purposes of a School of Oriental Studies, and for the dissolution of the Institution, and for purposes in connection therewith. [13th December 1912.]

WHEREAS by royal charter dated the twenty-first day of January eighteen hundred and seven (herein-after referred to as the charter of the Institution) a society (herein-after referred to as the Institution) was incorporated by the name of "The London Institution for the Advancement of Literature and the Diffusion of Useful Knowledge" for the purposes mentioned in the charter :

And whereas the affairs of the Institution are regulated by the charter of the Institution and by an Act passed in the session of the first and second years of the reign of His late Majesty King George the Fourth, intituled "An Act for providing an increase of the annual income of the London Institution" (herein-after referred to as the recited Act) :

And whereas it is proposed to establish a School of Oriental Studies, and it has been arranged that certain of the property of the Institution shall be transferred to the Commissioners of Works (herein-after referred to as the Commissioners) with a view to its use for the purposes of, and in connection with, such school, and such arrangement has been confirmed at a general meeting of the proprietors of the Institution held on the twenty-fifth day of March nineteen hundred and twelve :

And whereas it is expedient for the above-mentioned purpose that the Institution should be dissolved, and that such provisions should be made as in this Act appear for the disposal of the property of the Institution not transferred to the Commissioners by this Act and for the benefit of the proprietors and life members of the Institution :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) As from the commencement of this Act all the property of the Institution, other than the funds belonging to the Institution and such other property as is herein-after expressly specified, shall, by virtue of this Act, vest in the Commissioners, freed and discharged from all incumbrances and rights affecting the property at that date, with a view to the use of the property for the purposes of, and in connection with, a School of Oriental Studies.

Transfer of certain property of the Institution to the Commissioners.

(2) The funds belonging to the Institution, whether invested or not, and such of the books and manuscripts belonging to the Institution as may be agreed between the Commissioners and the committee of management of the Institution, shall not vest in the Commissioners, but shall be retained by the Institution and shall be disposed of as herein-after provided in this Act.

(3) There shall be paid to the Institution, in consideration for the vesting of the property aforesaid in the Commissioners, the sum of twelve thousand pounds, together with such further sum (if any) as the Treasury may approve, out of moneys provided by Parliament.

(4) The Commissioners may transfer any property, other than real property, vested in them by this Act, on such conditions as they think fit, to the governing body of the School of Oriental Studies, upon the establishment of such a school.

Disposal of property retained by Institution and dissolution of Institution.

2.—(1) The funds retained by the Institution as aforesaid, shall, so far as necessary, be realized, and shall, together with such sum as may be paid out of moneys provided by Parliament, be disposed of by the Institution as soon as may be in the following manner and in the following order:—

- (i) in the payment and discharge of all the debts and liabilities of the Institution, including the payment of sums in settlement of claims made against the Institution; and
- (ii) in making the payments and transfers specified in the Schedule to this Act to the proprietors of the Institution or their legal personal representatives; and
- (iii) in the distribution of any surplus remaining after the payments aforesaid for the benefit of such of the past and present members of the staff of the Institution, or of their families, as the committee of management of the Institution may select, in such manner and in such proportions as the committee in their discretion think fit.

(2) The books and manuscripts retained by the Institution shall be transferred to such public institutions as may be determined by the committee of management of the Institution.

(3) As soon as the disposition of property required to be made by this section has been made, the Institution shall be and is hereby dissolved and the charter of the Institution shall be and is hereby revoked, and the recited Act shall be and is hereby repealed.

Provision for continuing members.

3. The following persons, that is to say—

- (1) such of the persons who were at the commencement of this Act proprietors of the Institution as signify in writing to the Commissioners before the first day of January nineteen hundred and thirteen their intention of availing themselves of the provisions of this section; and

- (2) any persons who were at the commencement of this Act life members of the Institution; and
- (3) any person who at any time after the commencement of this Act is nominated for the enjoyment of the rights conferred by this section by any person who, if this Act had not been passed, might at that time have nominated him as a life member of the Institution;

(all of which persons are herein-after referred to as continuing members), shall be entitled for as long as they so desire to continue to make such use of the library, theatre and other buildings and property vested in the Commissioners by this Act (including at least the exclusive use of two rooms as a reading room and smoking room respectively) as in the opinion of the Commissioners is reasonable and not calculated to interfere with the main purposes for which the buildings and property are intended to be used:

Provided that the rights of continuing members who were at the commencement of this Act proprietors of the Institution shall be subject to the obligation to pay, in the year nineteen hundred and thirteen and in each succeeding year, to such persons at such times as the Commissioners may determine, an annual subscription of two guineas to be applied for the benefit of the continuing members in their use of such buildings and property as aforesaid, and if in any year the income derived from subscriptions and from any voluntary payments which may be made by or on behalf of continuing members falls below one hundred and seventy pounds, then at the conclusion of the year all rights under this section shall be determined, and this section shall cease to have effect: Provided also that the continuing members or a majority of them may appoint a Committee having power to bind the continuing members by its decisions on matters affecting them, and the income derived from such subscriptions as aforesaid, may, with the approval of the Commissioners, be administered by the Committee.

4. Any person who, having been a proprietor of the Institution, has forfeited his share by nonpayment of the annual sum payable in respect thereof, and was at the commencement of this Act entitled; on making the payments specified in the recited Act, to have his share restored, shall, if he makes the said payments before the first day of January nineteen hundred and thirteen, but not otherwise, be entitled to the rights and privileges conferred on proprietors of the Institution by this Act.

Provisions
with respect to
proprietors
whose shares
have lapsed. •

5.—(1) This Act may be cited as the London Institution (Transfer) Act, 1912.

(2) The provisions of this Act shall have effect, notwithstanding anything contained in the recited Act or in the charter of the Institution.

Short title, and
supersession of
recited Act
and charter.

SCHEDULE.**PAYMENTS TO BE MADE TO PROPRIETORS OF THE INSTITUTION.**

There shall be paid to every person who was a proprietor at the commencement of this Act, not being a person whose share was discharged from the payment of annual sums by virtue of the payment of a gross sum, or to his legal personal representatives, the sum of twenty-five pounds.

There shall be transferred to every such proprietor whose share was so discharged, or to his legal personal representatives, the sum of seventy pounds $2\frac{1}{2}$ per cent. consolidated stock.

A person holding more than one share shall be entitled to payment in respect of each share.

CHAPTER 14.

An Act to consolidate and amend enactments relating to Animals and Knackers; and to make further provision with respect thereto. [13th December 1912.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Offences of
cruelty.

1.—(1) If any person—

- (a) shall cruelly beat, kick, ill-treat, over-ride, over-drive, over-load, torture, infuriate, or terrify any animal, or shall cause or procure, or, being the owner, permit any animal to be so used, or shall, by wantonly or unreasonably doing or omitting to do any act, or causing or procuring the commission or omission of any act, cause any unnecessary suffering, or, being the owner, permit any unnecessary suffering to be so caused to any animal ; or
- (b) shall convey or carry, or cause or procure, or, being the owner, permit to be conveyed or carried, any animal in such manner or position as to cause that animal any unnecessary suffering ; or
- (c) shall cause, procure, or assist at the fighting or baiting of any animal ; or shall keep, use, manage, or act or assist in the management of, any premises or place for the purpose, or partly for the purpose, of fighting or baiting any animal, or shall permit any premises or place to be so kept, managed, or used, or shall receive, or cause or procure any person to receive, money for the admission of any person to such premises or place ; or